

Sample Answer, Practice Problem #2

This is a sample answer for the second practice essay. This is not the only way to answer the question, nor is it the only way to write up/structure an answer. Rather, it is a model of how one might successfully answer this prompt. After the answer, I have also included, in italics, some additional thoughts on alternative arguments and conclusions that an answer could very reasonably defend.

The big-picture point I'll make here at the outset is to underscore that precise, detailed factual arguments are crucial. For example, it's useful to note that a jury could find either that the defendant did nothing in retaliation or that they retaliated, but it's important to take the next step and specify precisely why the jury could find that: a jury could find no retaliation because that's what Dr. Klaus testified, but a jury could also find retaliation because the timing of the changes to Dr. P's working conditions so closely follow on the heels of her whistleblowing. Factual detail when applying the law to the facts makes the difference between good and great legal writing. This sample answer is approximately 1,050 words.

Sample Answer:

The issue is whether to grant or deny the parties' cross-motions for summary judgment.

Summary judgment is appropriate when there are no genuine disputes of material fact, and the moving party is entitled to judgment as a matter of law. The court must view the facts in the light most favorable to the non-moving party, drawing reasonable inferences in favor of the non-moving party. To determine what facts are "material," courts look to the relevant substantive law.

Under the relevant substantive law from *Bates*, to win her case, Dr. Persimmon would have to show three things: (1) that Wags-a-Lot retaliated against her for reporting Dr. Wilder, (2) that Wags-a-Lot took intentional steps to worsen her working conditions, and (3) that those conditions were "intolerable."

Here, there are genuine disputes of material fact that require a jury trial to resolve. Both motions for summary judgment should therefore be denied.

Taking each element that Dr. Persimmon needs to show in order:

(1) First, while the parties agree that Dr. Persimmon reported Dr. Wilder, there is a genuine dispute of fact about whether Wags-a-Lot retaliated against Dr. Persimmon for having

reported Dr. Wilder.

On the one hand, according to Dr. Klaus, Wags-a-Lot took no actions against Dr. Persimmon at all, and Dr. Persimmon's loss of clients was just a result of deteriorating bedside manner once Wags-a-Lot determined that Dr. Wilder did nothing wrong. A reasonable jury could find Dr. Klaus's testimony credible, and if the jury did so, then Wags-a-Lot would win the case, because Dr. Persimmon could not show any retaliation.

However, according to Dr. Persimmon's deposition, right after she reported Dr. Wilder, she was moved to the basement and lost all of her clients. But those clients, notably, returned to Dr. Persimmon once she started her own clinic. From that, a reasonable jury could infer—as Dr. Persimmon suggests—that Wags-a-Lot was rerouting Dr. Persimmon's clients. And given the timing, because it occurred right after Dr. Persimmon reported Dr. Wilder, a reasonable jury could likewise infer that the move to the basement and the rerouted clients were a punishment for reporting Dr. Wilder. If the jury took that view, then Dr. Persimmon would successfully show the retaliation element of her claim.

Therefore, there is a genuine dispute of fact about whether Wags-a-Lot was retaliating, and if Dr. Persimmon could meet the remaining prongs of the test, this dispute would be material to the outcome.

(2) Second, there is a genuine dispute about whether Wags-a-Lot acted intentionally to worsen Dr. Persimmon's working conditions.

To begin with, Wags-a-Lot certainly acted intentionally to move Dr. Persimmon to the basement. Dr. Persimmon's uncontradicted testimony is that Wags-a-Lot told her that they were moving her to the basement, and then they did so. As a matter of law, that has to meet the "intentional" requirement, because Wags-a-Lot intended to do it, and a reasonable jury could conclude that being moved to the basement is "worse" than not being in the basement.

However, if the only thing that Wags-a-Lot did was move Dr. Persimmon to the basement, a mere change in office space—even if the new office is less pleasant—should not, as a matter of law, count as "intolerable," especially with no change in pay. Dr. Persimmon probably would have needed to testify to much worse conditions in the basement (flooding? no lights?) to make the basement intolerable on its own. Therefore, as a matter of law, Dr. Persimmon would also need to show additional bad working conditions. The key question for this prong of the test is thus whether Wags-a-Lot "intentionally" rerouted Dr. Persimmon's clients. A reasonable jury could decide for either party on that issue.

On the one hand, Dr. Klaus testified that the clients left on their own, meaning that Wags-a-Lot didn't cause the loss of clients. If the jury accepted that, Wags-a-Lot would win the case.

But there is likely just enough evidence to allow a jury to infer, instead, that Wags-a-Lot intentionally rerouted Dr. Persimmon's clients. Dr. Persimmon used to have packed days, from 9am to 6pm, and then suddenly she had hardly any clients at all, even though all of her colleagues continued seeing clients. In addition, once Dr. Persimmon started her own clinic, her regular clients came back—and some even drove extra distance to see her. That suggests that her clients weren't trying to avoid her, as Dr. Klaus asserted. There is, of course, no direct evidence that Wags-a-Lot was rerouting her clients; Dr. Persimmon speculates about that, but she didn't produce any direct evidence. Nevertheless, there is just enough evidence for a reasonable jury to infer that Wags-a-Lot was rerouting her clients to the other vets, who remained very busy. And that would count as Wags-a-Lot "intentionally" changing her working conditions, in a way that a jury could reasonably conclude made conditions "worse."

(3) Finally, if Wags-a-Lot did intentionally reroute Dr. Persimmon's clients, that created working conditions that the court should hold are "intolerable" as a matter of law. While *Bates* noted that a mere reduction in job duties without changing pay isn't "intolerable," that isn't what happened here. Admittedly, Dr. Persimmon was still paid the same. But she didn't just have fewer job duties. Instead, she was moved to the basement and deprived of essentially all of her work. That looks a lot like the "total freeze" with "no meaningful work" that *Bates* said would be "intolerable." Therefore, if a jury concludes that Wags-a-Lot intentionally deprived Dr. Persimmon of her clients, Dr. Persimmon should win on the third prong, too, and win the case.

Conclusion

To put all of those prongs of the test together: If a jury finds that Wags-a-Lot did reroute Dr. Persimmon's clients, and that Wags-a-Lot rerouted her clients and moved her to the basement in order to punish her for reporting Dr. Wilder, the court should hold that those things meet the "intolerable" standard and Dr. Persimmon would win. For the reasons given above, a reasonable jury could reach those conclusions, meaning that Dr. Persimmon could win.

But a jury could also reasonably find Dr. Klaus's testimony credible, in which case Dr. Persimmon could not show either retaliation or intentional actions by Wags-a-Lot. In that scenario, Wags-a-Lot would win.

Consequently, a trial is necessary to resolve these factual disputes. Therefore, the court should deny both parties' motions for summary judgment.

[Comments:

I think there are close calls for all three prongs of the 'constructive firing' test, especially prong 3. I drafted this sample answer to conclude that there are genuine disputes of material fact that require a jury to resolve, but I think it's also plausible to argue that the vet clinic should get summary judgment.

However, I don't think Dr. Persimmon can win summary judgment, because Dr. Klaus's testimony, if a jury believed Dr. Klaus, would mean that Dr. Persimmon couldn't win the retaliation or 'intentional worsening' prongs of the test, because according to Dr. Klaus's testimony, the loss of clients was a result of the clients' own choices.

Regardless of the overall conclusions, though, there are plenty of 'points' to score in an answer by arguing various factual details and how the law applies to those facts. So the key thing is to work carefully through, in granular detail, which facts are disputed, precisely why, and how those facts matter under the legal test.

In addition, as a matter of writing structure, I chose to structure this answer by going through each of the 3 prongs of the Bates test, looking at each party's case for each prong. But an answer could very successfully be structured, instead, by looking first at one side's motion for summary judgment (evaluating all three prongs) and then at the other side's motion for summary judgment (again evaluating the prongs of the Bates test). Either approach to organizing an answer can work well, but clear organization is important so that the reader can tell, at any given moment, which light you're viewing the facts in and which prong of the legal test you're applying.

Since I structured my answer in terms of the prongs of the legal test, let's take it prong-by-prong:

For the retaliation prong, this sample answer concludes that a jury could decide either way, and I lean toward that view myself. But I think it would also be reasonable to argue that Dr. Persimmon has produced no evidence that Wags-a-Lot was doing anything to reroute her clients to punish her. One could argue that although it's helpful to Dr. Persimmon's case that her clients came back to her when she started a new clinic, that by itself isn't enough for a jury to infer that the front desk at Wags-a-Lot was redirecting Dr. Persimmon's clients—

let alone for a jury to infer that the clinic was rerouting her clients as punishment for blowing the whistle on Dr. Wilder. One could say that's simply too many leaps in logic without any evidence that the front desk was telling clients particular things.

The same point can be made for the second prong: In contrast to my sample answer, one could argue that Dr. Persimmon has shown that her clients are willing to work with her at a new clinic, but that might not be enough for a reasonable jury to conclude that the clients must have been "intentionally" rerouted by Wags-a-Lot. And if Dr. Persimmon hasn't produced enough evidence for a jury to find "intentional" action, the clinic should get summary judgment. One could also argue about whether losing clients counts as a "worsen[ing]" of working conditions (I get the same pay but no work? that sounds good to me!)—though given that the Bates excerpt mentions "no meaningful work" as a form of "intolerable" conditions, I think losing most clients probably does count as a "worsening" for the second prong.

Finally, for the third prong, I think it's plausible to argue for any of three different conclusions: (1) a move to the basement and loss of essentially all clients is "intolerable" as a matter of law, because it looks like the "total freeze" described in Bates (this is what the sample answer above argues); OR (2) a move to the basement and loss of clients, but with no change in pay, is not "intolerable," because Dr. Persimmon still had some clients, and so this is akin to when Bates describes "just reducing an employee's job responsibilities," so the court should hold as a matter of law that the conditions here weren't "intolerable" and the clinic must win; OR (3) a jury is needed to decide just how close Dr. Persimmon's conditions were to "no meaningful work," especially because the legal standard is that "a reasonable person" would find the conditions "intolerable," which could arguably best be left to the jury to evaluate when the facts present a close call like this.

The key thing is to recognize that for some aspects of this problem, like whether Wags-a-Lot acted intentionally, it's a factual issue, while for the "intolerable" prong, it's much more a question of whether the undisputed facts (no one disputes that Dr. Persimmon was moved to the basement and had essentially no clients) meet the legal standard for "intolerable." Attention to both the facts and what the legal standard means for those facts "as a matter of law" is important. And thoroughly working through each prong of the test—even if you think that one prong is dispositive of the case—is important, to make sure we're thoroughly covering all our bases.]